

Form No. MGT-8

[Pursuant to section 92(2) of the Companies Act, 2013 and rule 11(2) of Companies (Management and Administration) Rules, 2014]

CERTIFICATE BY A COMPANY SECRETARY IN PRACTICE

We have examined the registers, records and books and papers of Dow Chemical International Private Limited ('the Company'), having Registered Office at 1st Floor, Block B, Godrej IT Park, Godrej Business District, Pirojashah Nagar, Vikhroli (West), Mumbai 400 079 and CIN U24239MH1998PTC113551, as required to be maintained under the Companies Act, 2013 ('the Act') and the rules made there under for the financial year ended on March 31, 2018. In our opinion and to the best of our information and according to the examinations carried out by us and explanations furnished to us by the company, its officers and agents, we certify that:

- A. The Annual Return states the facts as at the close of the aforesaid financial year correctly and adequately.
- B. During the aforesaid financial year the Company has complied with provisions of the Act & Rules made there under in respect of:
 1. Its status under the Act;
 2. Maintenance of registers/records & making entries therein within the time prescribed therefore;
 3. In view of revised annual return (i.e. MGT-7) filing of forms and returns are not required to be state in the annual return hence this point becomes redundant. But the company has filed the forms and returns with the Registrar of Companies, Regional Director, Central Government, Tribunal, Court or other authorities as and when required as per the Act, along with the additional filing fees in case of delayed filings, if any;
 4. Calling/ convening/ holding meetings of Board of Directors or its committees, if any, and the meetings of the members of the company on due dates as stated in the annual return in respect of which meetings, proper notices were given and the proceedings including the circular resolutions and resolutions passed by postal ballot, if any, have been properly recorded in the Minute Book/registers maintained for the purpose and the same have been signed;



5. The company has not closed its Register of Members;
6. The company has not made available advances/loans to its directors and/or persons or firms or companies referred in section 185 of the Act;
7. All transactions entered with the Related Parties for the year under review were on arm's length basis and in the ordinary course of business and the provisions of section 188 of the Act are not attracted;
8. The Company has no issue or allotment or transfer or transmission or buyback of securities/ redemption of preference shares or debentures/ alteration or reduction of share capital/ conversion of shares/ securities;
9. The Company is not keeping in abeyance the rights to dividend, rights shares and bonus shares pending registration of transfer of shares in compliance with the provisions of the Act;
10. Declaration and payment of dividend; No transfer of unpaid/unclaimed dividend/other amounts as applicable to the Investor Education and Protection Fund under the Act which is required to be transferred to Investor Education and Protection Fund during the year under review;
11. Signing of audited financial statement as per the provisions of section 134 of the Act and report of directors is as per sub - sections (3), (4) and (5) thereof;
12. Constitution/ appointment/ re-appointments/disclosures of the Directors, and the remuneration paid to them;
13. Re-appointment of auditors as per the provisions of section 139 of the Act;
14. The Company has taken the approvals from Honorable National Company Law Tribunal, Mumbai for Amalgamation of Dow Corning India Private Limited with the Company as per Section 230 to 232 of the Companies Act, 2013;
15. The company has not Accepted/ renewed/ repaid deposits;
16. The company has no borrowings from its directors, members, public financial institutions, banks and others which require creation/ modification/ satisfaction of charges in that respect;



17. The Company has no loans and investments or guarantees given or providing of securities to other bodies corporate or persons falling under the provisions of section 186 of the Act;
18. Altered the main object of the Memorandum of Association of the Company and the company has altered the Capital clause of the Memorandum of Association of the Company under the scheme of amalgamation of Dow Corning India Private Limited with the Company as per Section 230 to 232 of the Companies Act, 2013;

For Ashish Bhatt & Associates

Ashish Bhatt

Ashish Bhatt
Practicing Company Secretary
C.P. No. 2956

Place: Thane
Date: January 15, 2019

